

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

GITI TIRE (USA) LTD., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-22

Served: October 25, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On May 20, 2024, Notice of Filing of Complaint and Assignment was issued, notifying Flexport International, LLC (“Flexport” or “Respondent”), that Giti Tire (USA) Ltd. (“Giti” or “Complainant”) filed complaint against it alleging that Flexport violations 46 U.S.C. §§ 41102(c), 41104(a)(14), 41104(a)(15), 41104(d) and 46 C.F.R. 545.4 and 545.5 by issuing invoices for detention and demurrage charges that did not contain the information required under 46 U.S.C. 41104(d)(2), invoicing Giti for charges that were already invoiced to other parties, and for excessive or unreasonable changes.

On June 14, 2024, Flexport filed a Motion to Dismiss the Complaint (“Motion”). On August 27, 2024, the Motion was deferred, pending receipt of Giti’s amended complaint. On September 9, 2024, Giti filed the amended complaint, and on September 18, 2024, Flexport’s Motion was dismissed as moot, and it was ordered to submit its answer to the amended complaint.

On October 2, 2024, Flexport filed its answer and affirmative defenses and denied it committed Shipping Act violations. On October 3, 2024, Flexport filed a second dispositive motion, a Motion for Judgment on the Pleadings (“Motion for JP”).

The parties submitted their first Joint Status Report¹ (“JSR”) and proposed a discovery schedule. The parties state that they have held initial meetings, exchanged initial disclosures, and separately contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”), but there is no indication that they have discussed discovery requests, discussed the proportionality of discovery, the burden and expense of discovery, and the discovery of electronically stored information as instructed in the Initial Order. The parties must conduct such discussions no later than 7 days after the issuance of this Order if they have not done so already.

Complainant requests an oral hearing in this matter. Pursuant to 46 C.F.R. Section 502.62 (a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in

¹ The parties did not date the Joint Status Report and are reminded that future filings must include the date filed and in the case of motions that are not jointly filed, a dated certificate of service to the other party. Initial Order at 2.

the proceeding, it is not clear that there is reason to conduct an oral hearing. Accordingly, VCC's request for oral hearing is **DENIED**.

The parties should review and follow the Initial Order² and familiarize themselves with the Commission's Rules.

The proposed discovery schedule is not reasonable. The proposed schedule provides few due dates and does not include a proposed briefing schedule, and if adequate time is allowed for briefing under the proposed discovery schedule, it does not allow for issuance of a decision by the date set by the Commission. To assist the parties with scheduling, a briefing schedule and a joint status report have been added to the adjusted schedule. Accordingly, the parties are **ORDERED** to follow the below schedule:

November 8, 2024	Deadline for service of initial written discovery requests
December 2, 2024	Deadline to disclose use of expert witnesses including field of study and possible topics
December 9, 2024	Second Joint Status Report
December 23, 2024	Parties Exchange Expert Reports
January 21, 2025	Parties exchange rebuttal expert reports
February 3, 2025	Discovery closes
March 3, 2025	Complainant's Brief, Proposed Findings of Fact, and Appendix due
March 31, 2025	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix due
April 14, 2025	Complainant's Reply Brief and Response to Respondent's Proposed Findings of Fact due

Motions, including the second dispositive motion filed in this proceeding on October 3, 2024, will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

² For example, the Commission recently switched to Westlaw, and citations to Lexis should include a parallel citation to Westlaw, if possible. *Id.* Lexis citations alone may delay action on a motion.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party’s] Responses to [Party’s] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party’s proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party’s] proposed findings of fact with the hard copies of the response to [Party’s] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party’s] Appendix.** The evidence on which a party’s proposed findings of fact or response to another party’s proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;

d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge